



MEMORANDUM / BY_LAW ABISHEK RESIDENTS' WELFARE ASSOCIATION



V 1.1 APPROVED @
EXTRA-ORDINARY GENERAL BODY MEETING : DATE: 27 AUGUST 2023

Revision History

Version 1.0 – Approved in EGM Oct 31, 2021

Version 1.1 – Change to allow Family member of owner to be in MC – Approved in EGM Aug 27, 2023

Clause 11 H Designation – word “Resident Owner” replaced by “Owner or Family member of Owner”

Clause 13 - Word “Owner” replaced by “Owner or Family member of Owner”

Clause 13 ii – word “Resident Owner” replaced by “Owner or Family member of Owner”

Clause 13 viii – Added.

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PREAMBLE

VISION

It is our shared vision to build a harmonious community that nurtures a vibrant, progressive, safe and healthy living environment.

MISSION

Our Mission is to manage the affairs of the Association by providing effective and professional management, and creating an atmosphere that actively encourages community involvement and volunteerism.

VALUES

Our shared values are:

- We shall care for each other's well-being. We shall be respectful in our written and verbal communication when dealing with fellow residents, staff, visitors, vendors, etc.
- We shall strive to build a child and elders- friendly environment
- We shall be good community citizens who are willingly and voluntarily conforming to the By_laws, rules and regulations of the Association
- We shall honor the need for privacy of each other
- We shall extend our full support and co- operation to the Management Committee and the staff of the Association, on a continuous basis and help make the Association's vision into reality
- We shall share creative pursuits, wisdom, celebrations, life transitions and simple daily connections that make life meaningful in the true spirit of comradeship.

DEFINITIONS

In these Memorandum, By-law and Rules and Regulations, unless the context otherwise requires, the meaning/s of terms mentioned hereinabove are defined as below:

- a) **AGM:** Annual General Body Meeting of the members of ARWA.
- b) **ARWA :** ABISHEK RESIDENTS' WELFARE ASSOCIATION, a registered association under The Tamil Nadu Societies Registration Act 1975 with Registration No. 294 of 2009.
- c) **Common Areas and Facilities:**
 - 1) The land on which the building is located; (2) the foundations, columns, girders, beams, supports, main walls, roofs, halls, corridors, lobbies, stairs, stairways, terrace, compound walls, fire escapes, wells, and sumps and entrances and exits of building; (3) the basements, cellars, yards, gardens, parking areas and storage spaces; (4) the premises for lodging of caretakers or persons employed for the maintenance of the property; (5) Water supply, sewerage and drainage connections and the installations of central services such as power, light, gas, hot and cold water, heating, lifts, CCTV, refrigeration, air-conditioning and incinerating; (6) the elevators, tanks, pumps, motors, fans, compressors, ducts and in general all apparatus and installations existing for the common use; (7) automatic fire detecting and alarm facilities necessary to warn the occupants of the property of the existence of the fire; (8) such other community and commercial facilities as may be prescribed; and (9) all other parts of the property necessary or convenient to its existence, maintenance and safety, or normally in common use;
- d) **EGM:** Extra-ordinary General Body Meeting of the members of ARWA.
- e) **Family :** Family means all family members of blood relatives including spouse, daughter / son -in-law and adopted son / daughter.
- f) **Financial Year:** Commencing from 1st APRIL and ending with 31st MARCH every year.
- g) **General Body:** All the members of the Association.
- h) **General Body Meeting:** Meeting of members of the association, AGM or EGM.
- i) **HUF:** Hindu Undivided Family.
- j) **MC:** The Management Committee. The governing body of ARWA consisting of members duly elected as per the by-law.
- k) **RAMANIYAM ABISHEK APARTMENT :** The Residential Complex of RAMANIYAM ABISHEK including Block2, Block 3, Block 4 and Block 5.

MEMORANDUM OF ASSOCIATION - ABISHEK RESIDENTS' WELFARE ASSOCIATION
(Registered under The Tamil Nadu Societies Registration Act 1975)

1. Name of Society:

The Name of the Society shall be **"ABISHEK RESIDENTS' WELFARE ASSOCIATION (hereinafter referred as 'ARWA')"**.

2. Registered Office:-

The address of the Registered office is at No.68, Ramaniyam Abishek, East Coast Road, Thiruvanimiyur, Chennai - 600 041, Tamilnadu.

3. Area of Operation

The area of operation of Association shall be restricted to No.68, "The Residential Complex of RAMANIYAM ABISHEK including Block 2, Block 3, Block 4 and Block 5", East Coast Road, Thiruvanimiyur, Chennai - 600 041, Tamilnadu.

4. Objects of the ASSOCIATION:

The objects of the Association shall be:-

1. To act as an Association of Apartment Owners of ARWA, in such a manner as to protect the legitimate rights, privileges and interest of all its Owners;
2. To provide for the security, safety, maintenance, repair, replacement, or improvement of Common Areas and Facilities of ARWA by proportionate contribution from the Owners. To establish/renew contracts with contractors/service providers/suppliers, as and when required, for the aforesaid purposes;
3. To provide for, and do all or any of the matters as laid down in these By_-Laws.
4. To establish and carry on jointly with individuals or institutions, or on its own volition, educational, physical, social, recreational, or other activities, for the benefit of the Apartment Owners;
5. To invest, or deposit monies to the advantage of the Owners as laid down in these By_-Laws
6. To institute, prosecute and defend suits and other proceedings in which the Association may be involved and negotiate, settle or compromise with third parties on any matter affecting the common rights and properties of the Association. To engage the services of any professionals like advocates, tax consultants etc., for the aforesaid purposes.
7. To represent collectively the Owners before the Government and other authorities on matters that may affect the Owners collectively, monetarily or otherwise (on matters related to the Apartments) and take such steps as are found necessary in this regard.
8. To operate as a non-profit organization.
9. To frame rules and administrative procedures with the approval of the General Body of the Association. **The Management Committee (hereinafter referred as 'MC')** is however authorized to frame rules and administrative procedures and modify the same, from time to time, provided the same is not inconsistent with the By_-laws herein and it is duly ratified at a subsequent meeting of the General Body.
5. To do all things that are necessary and convenient in the expeditious attainment of the objectives specified in these By_-Laws.

BY - LAW of ABISHEK RESIDENTS' WELFARE ASSOCIATION
(Registered under The Tamil Nadu Societies Registration Act 1975)

1. NAME OF ASSOCIATION

The Name of the Society shall be **"ABISHEK RESIDENTS' WELFARE ASSOCIATION (hereinafter referred as 'ARWA')"**.

2. ADDRESS OF THE REGISTERED OFFICE OF ASSOCIATION: -

The Registered office of Association is situated at No.68, Ramaniyam Abishek, East Coast Road, Thiruvanimiyur, Chennai - 600 041, Tamilnadu.

3. DATE OF FORMATION: May 29, 2009.

4. JURISDICTION OF THE REGISTRAR: The Registrar of Societies, Chennai South - 600015.

5. WORKING HOURS

The Business hours of Association shall be between 10.00 AM to 17.00 PM, on all working days except the Sunday and Government Holidays.

6. SUITS

The Association shall sue or to be sued in the name of the Association.

7. BUSINESS DIRECTIONS

The President is empowered to give directions regarding the business of the Association.

8. MEMBERSHIP

- All owners of the flat in **ARWA** shall automatically be a member of the Association and must fill in the specified application digital/physical form. The owners will be members of **ABISHEK RESIDENTS' WELFARE ASSOCIATION** irrespective of whether they reside in **RAMANIYAM ABISHEK APARTMENT** or elsewhere. Where the Flat has been purchased by a company, Trust, HUF, Partnership Firm, Association of Persons etc., the persons authorised by the respective entity shall become a member.
- Where a Flat has been purchased jointly by two or more persons, they shall be jointly entitled to the Flat, but only one among them, as decided by them and communicated to the secretary of ARWA, will become the member.
- Where the owner of a Flat in **RAMANIYAM ABISHEK APARTMENT** has rented it to another party/person or has permitted another person/party to reside therein, such resident will be governed by the rules and regulations of **ABISHEK RESIDENTS' WELFARE ASSOCIATION**.
- Upon sale of a flat, the purchaser shall be liable to settle by payment to the Association all dues and arrears of the erstwhile owner. The purchaser shall also pay the monthly Maintenance charges as applicable for a new member in these By_- laws. The membership of the erstwhile owner shall cease on the sale or transfer of an apartment.
- On the death of an Owner, or on account of Gift or by Will by an Owner, his/her/their Apartment shall be transferred to the person, or persons, to whom bequeathed or

Gifted or Willed, or to the legal successor in case no testamentary declaration has been made. The Legatee or the Successor shall, on satisfactory completion of legal formalities, if any, automatically become a member of the Association, with the same rights and privileges as the previous Owner. All outstanding dues owed to the Association by such deceased/outgoing Owner shall become liable for immediate settlement by the Successor.

- Change of Ownership of apartment/change in tenancy or occupancy shall be intimated in writing to the Secretary of **ABISHEK RESIDENTS' WELFARE ASSOCIATION** by the previous incumbent.
- The right of admission of membership vests with the decision of the Association.

9. MAINTENANCE CHARGES: -

The expenses on maintenance of common amenities of **RAMANIYAM ABISHEK APARTMENT** shall be borne by the members of the Association, to be paid to the Association. For this purpose, members shall pay a Monthly Maintenance Charge of Rs.2.30 per sq.ft.,(plus applicable taxes, if any) on the flat area mentioned in the conveyance deed and it is subject to revision, which shall be decided only by the General Body.

b. Any amount that may be decided from time to time by the General Body towards the Maintenance charges and other levies shall be payable by all the Flat owners to the Association to promote the objects of the Association.

c. The Monthly Maintenance Charges shall be paid on or before 7th of every month in advance.

All payments to the Association shall be made by crossed account payee local cheque/demand drafts/pay orders / by way of transfer through **NEFT** or any other Electronic transfer in favour of **ABISHEK RESIDENTS' WELFARE ASSOCIATION**.

- d. Any member who is in arrears of any dues/subscription duly prescribed and notified by the MC shall not be allowed to contest or to vote at the meetings of the Association. A member will be deemed to be in arrears of dues if he/she has not paid the same within two weeks of the due date.
- e. No member may exempt himself from liability for his/her contribution towards the common expenses by waiver of the use or enjoyment of the general and restricted common areas and facilities or by abandonment of his/her apartment.

10. MANNER OF TRANSACTING BUSINESS

a. The Secretary is empowered to transact all the business of the Association in conformity with the object of the Association. However, he shall also present an Annual Report and Audited Accounts for each past year and a broad programme and budget for the ensuing year. The President shall have the direction, with the consultation of the Committee, to amend or discontinue any programme or to accept and carry out any fresh programme.

b. Decision of the General Body Meetings shall be made by simple majority vote and in the case of a tie, by a casting vote by the President, save in the case of special Resolutions.

11. (A) MANAGEMENT OF THE ASSOCIATION:

The affairs of the Association shall be governed by a **Management Committee (MC)**. All members of MC including Office Bearers shall be working in a purely voluntary and honorary capacity. They shall not be paid any salary or compensation for their work.

11 (B) POWERS AND DUTIES OF THE MANAGEMENT COMMITTEE:

The MC shall have all the powers and duties necessary for the administration of the affairs of the Association, and may do all such acts, and things as are, by law, or by these By-Laws directed to be exercised and done by the Owners. The MC shall also have the powers to nominate persons, to assist the MC in its day-to-day activities. The MC shall also have the powers to form sub-committees for handling specific areas such as house-keeping, safety & security, engineering, cultural & sports etc., and assign such duties to them as they deem appropriate for the better upkeep & maintenance of **RAMANIYAM ABISHEK APARTMENT**.

11 (C) OTHER DUTIES

In addition to the duties imposed by these By-Laws, or by the resolution of the General Body, the MC shall be responsible for: -

- i) The preservation, maintenance & upkeep and safety of the Common Areas and Facilities;
- ii) The assessment, and collection of all charges towards maintenance/supply of goods and services and the general upkeep of the Common Areas and Facilities;
- iii) Evaluating & approving any notices to residents requesting money contributions for special events such as new year eve celebrations etc. However, such money contributions shall be on a voluntary basis only.
- iv) the designation, employment/ appointment, remuneration, and dismissal of the personnel/agency necessary for the maintenance and operation of Common Areas and Facilities;
- v) the setting up of a proper procedure for maintaining the books of accounts and carrying out the audit;
- vi) to inspect the accounts kept by the Treasurer, and examine the registers and account books, and to take steps for the recovery of all sums due to the Association.
- vii) to sanction working expenses, maintain cash balances, and deal with miscellaneous business transactions;
- viii) to see that the Minutes Book is written up promptly, and is signed duly by one of the MC members so authorised in this behalf;
- ix) to hear, and deal with complaints;
- x) to make all payments to Government, semi- Government and other such bodies, as due by the Association.
- xi) To finalize the Budget to be presented to AGM.
- xii) Present Audited Accounts to AGM.
- xiii) To levy and collect parking fee from owners who do not have parking slots, an amount as determined by the General Body from time to time, subject to availability, on a first cum first served basis, in accordance with rules & regulations prescribed by the Association from time to time
- xiv) To levy and collect fines, an amount as determined by the General Body from time to time, from residents or non-resident owners for non-compliance of rules and regulations framed and communicated from time to time by the Association.

Any non-budgeted expenses of Rs. 5, 00,000/- (Rupees Five Lakhs) or above shall require the Majority approval of the Association members at a General Body Meeting.

11. (D) REGULAR MANAGEMENT COMMITTEE MEETING:

a. Regular meetings of the MC may be held at such time, and place, as shall be determined from time to time, by a majority of MC members at its meeting, but at least twelve such meetings shall be held during each year. Notice of regular meetings of the MC shall be given to each MC member, personally, or by electronic media / Whatsapp at least three days prior to the day fixed for such meeting.

b. The Secretary shall maintain the minutes of the meeting. The minutes shall be prepared by the Secretary or any MC member appointed by the Secretary. The minutes shall be prepared in consultation with the President, and the Secretary shall cause such minutes to be recorded within 30 days of the meeting so held.

c. If any of the Committee Members or Office Bearers fails to attend three consecutive Management Committee Meetings without any proper leave of absence, he /she shall be removed from the Committee.

11 (E) WAIVER OF NOTICE:

In case a meeting of MC is required to be called without the notice period as mentioned above then before, or at any such meeting of the MC, any member, may in writing, waive notice of such meetings, and such waiver shall be deemed equivalent to giving of such notice. Attendance by a member at any such meeting of the MC shall be tantamount to waiver of notice by him/her of the time and place thereof. If all the members are present at any meeting of the MC, no notice shall be required, and any business may be transacted at such a meeting.

11 (F) QUORUM FOR THE MEETING OF THE MANAGEMENT COMMITTEE:

At all meetings of the MC, the presence of 51% of the MC members, shall constitute a quorum for the transaction of business, and the acts of the members present at the meeting at which the quorum is present, shall be the acts of the MC. If at any meeting of the MC, there be less than a quorum present, the majority of those present may adjourn the meeting to a subsequent date or time. If at such an adjourned meeting also no quorum is present, any business which was tabled for discussion at the meeting may be taken up, without further notice, and the decisions arrived at shall be binding on all. Any and all decisions and resolutions of the Management Committee require the consent of at least 51% of the members present in the meeting.

11 (G) RESIGNATION OF MC MEMBER:

An elected MC member may resign at any time by sending a letter of resignation to the President or in his absence to the Secretary of the Association, but the resignation shall take effect from the date of acceptance by the 51% of the other MC members or one month from tendering resignation, whichever is earlier. On resignation, it is the responsibility of the resigning member to ensure a smooth transition and to organize and to handover the handled activities and responsibilities.

11 (H) DESIGNATION:

The designations of the "Office Bearers" of the MC shall be the President, Vice-President, the Secretary, the Treasurer and Managing Committee Members, all of whom shall be 'Owner' or 'Family member of Owner'.

11 (I) SELECTION OF MEMBERS OF MANAGEMENT COMMITTEE:

The members of MC are elected at the Members' Annual General Meeting (AGM) / Extra-Ordinary General Meeting (EGM). The number of members for MC will be nine. At the AGM / EGM, the election for the post of MC Member shall be decided based on voting and the person getting the maximum numbers of votes cast in his/her favor shall be elected for MC. The elected MC Members will be nominated for the post of President, Vice-President, Secretary and Treasurer by the newly constituted MC. Maximum representation in MC from same family by virtue of owning two or more flats is restricted to two members. Family means family members of blood relatives including spouse, daughter / son -in-law and adopted son / daughter.

11 (J) REMOVAL OF A MEMBER OF THE MANAGEMENT COMMITTEE:

At any regular or Special Meeting of the General Body, duly called, any one, or more of the MC members, including the Office Bearers, may be removed, with a cause, by a Two Thirds majority of votes, and a successor may thereafter be elected to fill the vacancy thus created. Any MC member, whose proposed removal has been included in the agenda of such meeting, shall be given an opportunity to be heard at the Meeting. A person so removed shall not be eligible to stand for re-election to the MC for a period of two years.

11 (K) ORGANISATION MEETING OF MC:

The first meeting of a newly elected MC shall be held immediately after the **General Body Meeting**, or within ten days of the General Body Meeting, at such a time and place as shall be fixed, by the elected members and a majority of the MC members shall be present.

12. DUTIES, POWERS & FUNCTIONS OF OFFICE BEARERS

A. PRESIDENT:

The President shall be the head of the Association, and shall guide and supervise its various activities. He shall preside over the AGM, Extra-Ordinary General Meeting (EGM) and MC Meetings, the proceedings of which shall be conducted under his direction, and general supervision. His rulings shall be in accordance with the quorum and voting requirements prescribed. He shall have an additional "CASTING VOTE" in the event of a tie in the voting.

B. VICE-PRESIDENT:

The Vice-President shall discharge the duties of the President in his/her absence and also be obliged to fulfill other responsibilities as defined by the MC.

C. SECRETARY:

a. The Secretary together with all MC members shall be responsible for all day to day activities relating to the proper management, maintenance and upkeep of the Common Areas and Facilities of ARWA Complex and shall, in particular:

b. Look after the administration and other affairs and attend to all correspondence;

c. Keep accurate records/minutes of the proceedings of all meetings of the MC, and of the AGM and EGM;

- d. Give effect to the directions and decisions taken at such meetings;
- e. Manage, and control the staff, and take disciplinary action where necessary;
- f. Institute, prosecute and defend suits and other proceedings in which the Association may be involved, as may be decided by the MC;
- g. And generally perform all such duties as are incidental to the Office of Secretary.
- h. Maintain data of Owners and Residents;
- i. Ensure that all original property related Documents, including parent documents, with regard to **RAMANIYAM ABISHEK APARTMENT** are kept in the safe custody of the Association, properly indexed and numbered and properly stored; and ensure that all Association related documents, correspondence etc. are kept filed properly.

D. TREASURER

Responsibilities of the Treasurer —

- a. Collect all dues to the Association and ensure that proper accounts are maintained of all financial transactions relating to the Association.
- b. Maintain an imprest cash amount as felt appropriate to meet any incidental expenses for an amount ratified by the MC from time to time.
- c. Prepare audited Annual Report and Financial Statement of Accounts under the guidance of the MC.
- d. Deploy and keep in safe custody the surplus funds of the Association in accordance with a duly passed Management Committee Resolution.
- e. Prepare and file annual and other statements, as applicable, with the authorities concerned.
- f. The Treasurer shall maintain an imprest cash amount of Rs. 15,000/- (Rupees Fifteen thousand only) for incidental expenses or such other amount as may be decided by the MC from time to time;

E. COMMITTEE MEMBERS: -

The Managing Committee Members will assist Secretary and Treasurer in day to day activities of the Association and execute the task as assigned by the Managing Committee.

13. ELECTION & TERM OF OFFICE:

- a. The MC will consist of 9 members with representation from all four blocks.
- b. The new MC Members shall be elected through the following process:

The Owner or Family member of Owner willing to represent his/her block ("Candidate") shall satisfy the following conditions:

- i. Minimum age limit of the Candidate shall be 21;

- ii. The Candidate shall be Owner or Family member of Owner;
 - iii. The Candidate can nominate himself for only ONE block where his ownership of Apartment.
 - iv. Nomination of a Candidate to contest the election to the Management Committee has to be proposed by at least two persons and seconded by one from the respective block;
 - v. A Candidate must not have been convicted by an offense punishable by imprisonment or adjudicated insolvent or of unsound mind;
 - vi. In case an Owner is a company, body corporate, Builder for his unsold Apartments or *any* other legal entity other than Individual or HUF, they cannot nominate an individual for contesting in the elections.
 - vii. The Existing MC's before the adoption of this new Byelaws will continue their office either till the expiry of their term or Resignation or disqualification.
 - viii. Written approval of owner shall be provided if family member of owner is representing as candidate.
- c. The term of office of a Management Committee shall be three years.

14. VACANCIES:

- I. Vacancies caused in the MC for any reason, shall be filled in by the MC by duly nominating another non- elected member of the respective block, at the MC meeting held next and such newly nominated member shall hold office, and shall have all rights attached to the said position, until the conclusion of next AGM of the Association and shall stand eligible for election at such AGM.

Vacancies may be created under the following situations:

- a) MC members resigning during their term.
- b) Disqualification or demise of MC member.

I Vacancies shall be filled by those candidates of the respective block.

15. ACCOUNTS & AUDIT: -

- a. The accounts shall be maintained by the Treasurer.
 - b. The financial year of the Association shall be from APRIL TO MARCH every year.
 - c. The Association shall present, at its AGM, an Audited Financial Statement of the expenses incurred in the maintenance and upkeep of ARWA, which shall contain:
 - i. the statement of Income and Expenditure for the Financial Year ended 31* March (under consideration) and a comparative statement for the previous Financial Year;
 - ii. a summary of the property, assets and liabilities of the Association.
 - d. The Audited Financial Statement shall be open for inspection by any Owners of the Association.
- e. PUBLICATION OF AUDITED FINANCIAL STATEMENT:

A copy of the Audited Financial Statement and of the Report of the Auditor, if any, shall be sent to all the Owners, along with the Notice calling for the AGM, and shall be subject to discussion at the meeting.

f. APPOINTMENT OF EXTERNAL AUDITOR:

The Association shall appoint at its AGM, an external auditor who shall audit the accounts of the Association and shall examine the annual return(s) and verify the same with the accounts relating thereto, and shall either sign the same as found by him to be correct, duly verified, and in accordance with law, or specifically report to the Association in what respect he finds it incorrect, un-vouched, and not in accordance with law.

16. SUPPLY OF DOCUMENTS: -

The Copies of By-laws, Income & Expenditure Statements and Balance Sheet will be supplied to Members on requisition at the cost of Rupee 1/- per copy per page.

17. FINE / ACTION TO BE TAKEN AGAINST MEMBERS WHO VIOLATES BY-LAWS OR RULES OF THE ASSOCIATION

Members found guilty of violation of all or any of the By-laws of the Association or rules framed by the Managing Committee will be liable for legal action by a resolution passed by the majority of the Managing Committee Members of the Committee.

18. DAY TO DAY TRANSACTION OF THE BUSINESS OF THE ASSOCIATION -

The Treasurer can have an imprest amount of Rs. 15,000/- (Rupees Fifteen thousand only) to meet the day to day expenditure of the Association.

19. GENERAL BODY MEETING: -

A. ANNUAL GENERAL BODY MEETING

a. An Annual General Body Meeting of the Association shall be convened within six months after the expiration of financial year, (i.e) on or before 30th of September every year.

B. ORDER OF BUSINESS: -

The Order of business of all AGMs shall be to:

- a. To receive and consider the proof of service of notice of the meeting, or waiver thereof;
- b. To take a roll-call of the Owners present;
- c. To consider and approve the Income and Expenditure Account and Balance sheet of the Association for the *year under consideration*;
- d. To elect Office Bearers;
- e. To appoint Auditor for the following Financial Year and fix their remuneration. Auditors so appointed shall hold office till the next AGM; and
- f. Any other subject with the permission of the Chair.

C. POWERS AND DUTIES OF THE ASSOCIATION

AUTHORITY:

1. The Association shall have the responsibility of administering the ARWA. To this end the Association shall, through the Management Committee, convene annual meetings, and special meetings of the General Body when required, to approve the annual budget and decide upon policy matters affecting the Owners.
2. The General Body may also, frame Rules & Regulations, which is called "Good Living Document", and take such decisions from time to time, as may be necessary for the smooth administration of the affairs of the Association, as are not in conflict with its By-Laws. The decision of the General Body, as approved by at least Majority of votes which shall be binding on all the Owners, irrespective of whether, or not, they were present at the time of decision making.

D. RIGHTS AND RESPONSIBILITIES OF THE GENERAL BODY:

The General Body shall: -

- i. take all necessary steps for the effective management of ARWA;
- ii. protect the legitimate rights, and interests of the Owners in all matters, by lawful means;
- iii. assess, fix and collect the charges to be realized from the Owners for the proper management and maintenance of ARWA, which shall include contribution towards maintenance charges;
- iv. elect Office Bearers at the general body meeting;
- v. review the work of the MC at its Annual General Meeting, or any other Meeting, and take such action as may be necessary to ensure the efficient working of the MC;
- vi. Appoint Auditors for the following Financial Year, to audit the accounts of the Association, and fix their remuneration. Auditors so appointed shall hold office till end of the next AGM;

E. TIME & PLACE OF THE GENERAL BODY MEETING:

The General Body Meeting of the Association shall be held at a suitable time and place convenient to the Owners, as may, from time to time, be decided by the Management Committee.

F. QUORUM FOR THE MEETING OF THE GENERAL BODY

The quorum for the General Body Meeting shall be 1/10th of the total members of the Association. (The presence, in person, carrying at least one tenth of the total votes shall constitute the quorum for a meeting of the General Body. To illustrate, as the Association has 147 Apartments, the presence of Owners carrying 15 votes shall constitute a quorum.) In case the quorum is not available then the Owners who are present may adjourn the meeting to a time not more than thirty minutes from the time the original meeting was called. At such adjourned meeting, if the quorum is not satisfied, then the Owners present shall form the quorum for the purpose of these By-laws.

G. EXTRA ORDINARY GENERAL BODY MEETING

An Extra Ordinary General Body Meeting of the Association may be convened by the President,

for any specific purpose or on the written requisition of the Managing Committee or at the request of the Owners by atleast 1/10th of the members of the Association. 21 days' clear notice shall be given to all members by post/circular/E mail for convening such meeting. The quorum for the Extra Ordinary General body meeting shall be 1/10th of the total members of the Association. The notice shall specify the date, hour, Agenda and place of the General Body.

C. NOTICE OF GENERAL BODY MEETING

It shall be the duty of the Secretary to organize a mail, or send a notice/circular of each AGM, or EGM, stating the purpose thereof, as well as the time and places where it is to be held, to each Owner via electronic mail/SMS/notice board/ tele-call/post. It shall be the responsibility of each Owner to ensure that their accurate and up-to-date contact information is furnished to and is reflecting in the Association records. The Secretary shall also arrange to display such notice on all the notice boards of ARWA. The notice in the case of the AGM shall be given not less than 21 days prior to such a meeting.

20. SPECIAL RESOLUTIONS

Special Resolution is one passed by 75% (3/4th) of members present in person at the meeting. The special resolution is required for amending the Memorandum and By-laws of the Association; amalgamate/divide dissolve the Association, and to change the name of the Association.

21. EXHIBITION OF REGISTERS:

The Members Register, Minutes Book, Annual Returns, Assets Register and Book of Accounts shall be kept at the registered office of the Association for Exhibition/Inspection by its members and at during the prescribed time shall be free of cost by giving a requisition in writing to the Secretary of the Association.

22. FUNDS OF THE ASSOCIATION:

- a) Funds of the Association shall generally be deposited in a bank/s approved by the Managing Committee and the bank account shall be operated by the TREASURER JOINTLY with the SECRETARY OR PRESIDENT / VICE PRESIDENT. As far as possible, all payments to be made by Account Payee Cheques only.
- b) Funds may be raised by the Association in all, or any of the following ways, namely: -
 - i. By levying maintenance charges from Owners as per the established frequency;
 - ii. By receiving advance deposits, and donations from Owners;
 - iii. From surplus of Income over Expenditure (if any);
 - iv. By hiring/leasing of any permitted common areas/facilities;
 - v. By levying 'moving-in' and 'moving-out' charges of Rs.3500/- per move in and per move out (applicable to both Owners and tenants) or such other amount as may be decided by the Management Committee from time to time. Such charges are also applicable for "move in" and "move out" from one block to other block within ARWA Complex. The Association may also collect a refundable interest free caution deposit of Rs 10,000/- (to cover for damages if any) in all such cases in accordance with the rules and regulations.
 - vi. By parking charges from owners who do not own or have reserved parking slots and visitors' car parking charges as may be decided by the Management Committee from time to time, subject to availability, on first cum first served basis.
 - vii. levying charges for any coaching related activities that make use of the Common Areas and Facilities, as may be decided by the Management Committee;
 - viii. By organising sponsorship events, fund raising events etc.;

- ix. Any other income or revenue generated by the Association

23. INVESTMENTS

The Association shall keep surplus funds in Fixed Deposit accounts with Scheduled Commercial Banks/Post office schemes/Government Securities. For the purposes of these By-Laws, Government Securities shall mean those securities the principal whereof and the interest whereon shall be fully and unconditionally guaranteed by the Central Government or the State Government.

24. ADJOURNMENT OF MEETINGS

If required quorum is not present at the appointed hour, the meeting shall be adjourned to the next Half an hour on the same day. No quorum is required for the adjourned meetings whereas the meeting is called on requisition from the Member shall stand dissolved if quorum is not present at the appointed time.

Voting in General Body Meeting:

- i. Each Owner shall be entitled to one vote per Apartment owned by him/her.
- ii. Votes may be cast either in person or by proxy. In relation to the Apartments owned by companies, body corporate or any such legal entities, the authorised representative of such respective Owners may attend the meeting and vote at a General Body Meeting.

25. PROXIES

Votes shall normally be cast in person. If, for any reason, an Owner who is entitled to vote, is unable to be present, he/she/they may authorize any person to vote, as PROXY, for him/her/them. One Owner shall nominate only one Proxy to vote. The Proxy may act as a proxy for only one Owner. The role of Proxy (unless he is an Owner) is only restricted to the extent of casting of votes as authorized by the Owner. The Proxy (unless he is an Owner) cannot participate in the discussions of the General Body meetings.

27. REMOVAL OF MEMBERS

- a) The owner of the apartment who has not paid the dues to the Association for 60 days or more from the due date shall be considered as a Defaulting Owner. Such Defaulting Owners shall not be entitled to any of the rights and privileges enjoyed by other owners, or to the services, and facilities offered by the Association, and shall forfeit all voting rights, whatsoever, till the dues are paid in full. If the Defaulting Owner remains to be a Defaulting Owner for a period of more than six months, such Owner may be removed from the Association, on the recommendations of the Management Committee. Such expelled person shall be readmitted as member upon payment of the entire outstanding to the Association with interest and penalty as provided under this By-laws or recommended by the Management Committee.
- b) An Owner can be removed by the MC for any misconduct, misbehavior etc., after providing reasonable opportunity of being heard. Such expelled person shall be readmitted as member pursuant to payment of the penalty as may be imposed by the, Management Committee.

28. DISQUALIFICATION:

No Owner shall be entitled to contest or vote on the election of the members to the MC, or any other matter, or be entitled to stand for election to such office, if he/she/they are in arrears, in respect of their dues to the Association, for more than 60 days from the due date. The names

of the Owners and the amounts in arrears for more than 60 days shall be displayed on the notice board(s) of the Association till such time the arrears remain outstanding.

29. RIGHTS, OBLIGATIONS & PRIVILEGES OF MEMBERS:

1. Every Owner shall abide by the By-Laws of the Association and follow all rules & regulations of the Association, as conveyed through the MC.
2. Every Owner shall abide by the By-Laws of the Association and follow all instructions of the General Body, as conveyed through the Managing Committee. The Owners shall also abide by rules and regulations prescribed in the Good Living document. Any violations of the Good Living Document will be subject to penalties as decided by the MC. The MC reserves the right to review and revise the Good Living Document based on emergency and such revisions / amendments shall be ratified in the next AGM / EGM.
3. Every Owner shall pay in advance assessments as fixed by the MC for the proper upkeep and maintenance of Common Areas and Facilities which shall include monthly and/or quarterly payments towards a) maintenance charges to meet day to day expenses for repair, maintenance, Insurance premium, management etc. and b) building a Corpus Fund for meeting future major expenses w.r.t. repairs, civil works, repainting renovation, equipment replacement etc.
4. The assessment shall be made based on the area /size of the flat as per the conveyance deed. All such assessments shall be paid within the prescribed time and place, failing which a penalty will be applicable and services rendered by the Association like generator, water and such other access, and other amenities will be discontinued.

30. PENALTIES:

The liability of payment of the maintenance charges shall at all-time be that of the Owner. Any Owner who fails to pay any amounts due to the Association and is a "DEFAULTING OWNER", shall be debarred from voting, or standing for election to MC. Any outstanding dues from the Apartment Owner beyond the due date shall carry interest at the rate of 12% per annum on such outstanding amounts. The maintenance charges shall be payable by cheque, digitally or any other mode as instructed by the MC.

Non-payment of dues to the Association for 60 days or over from the due date shall constitute just and sufficient reasons for the MC to deny the use of any, or all, of the facilities and services, including the supply of water, offered to its Owners, PROVIDED that due notice in writing, which shall not be less than 7 days, is given to the Defaulting Owner.

31. GENERAL:

A. MAINTENANCE MANAGER AND STAFFS:

The MC may employ, for the Association, a person who shall be designated as MAINTENANCE MANAGER, or any other designation as the MC may decide and other staffs for the purpose of carrying on the day-to-day activities necessary for achieving the objectives of the Association. The final selection of each staff member and their terms of employment/ services, compensation etc., shall be as approved/ ratified by MC.

B. COMPLIANCE:

The By-Laws are set forth to comply with the requirements of the Tamil Nadu Societies Registration Act, 1975. In case, any provision of this By-Law conflicts with the provisions of the said Act, it is agreed, and accepted that the provisions of the said Act shall prevail. In case of any disputes, jurisdiction shall be the courts of Chennai, in the state of Tamil Nadu, India.

C. INDEMNITY

All the MC members of the Association (whether past or present) shall be indemnified and hold harmless against all liabilities for their actions, inactions done in the best interest of the Association and the Owners. In case any legal proceedings are initiated against them in their official capacity (past or present) the Association shall bear all legal expenses for defending them, provided the MC member (s) is/are not guilty of gross negligence or willful misconduct in the performance of their official duties.

F. DISPUTES AND ARBITRATION

In the event of breach of the terms of this By_ Laws Agreement or in the event of any differences or disputes arising between the parties in regard to this By_ laws Agreement or any matter relating thereto, the same shall be referred to a sole Arbitrator to be appointed by the Association and his award shall be final and binding on the parties hereto and Arbitration shall be as per the Provisions of the Arbitration & Conciliation Act in force. The Arbitration shall be conducted in English Language. and the place of Arbitration shall be in Chennai. The courts at Chennai alone shall have jurisdiction in all matters relating to this By_ laws Agreement.

32. DISSOLUTION

The Association shall not be dissolved unless its dissolution is decided upon through a Resolution passed at the General/Extra-ordinary General body meeting by a majority of 3/4" of the members present at the meeting. In the event of dissolution any property whatsoever that remain after satisfying all debts and liabilities shall be given or transferred to any other Association having similar objects.

33. FOR MATTERS NOT MENTIONED OR CLEARLY MENTIONED IN THESE BY_-LAWS THE PROVISIONS OF THE TAMIL NADU SOCIETIES REGISTRATION ACT 1975 AND RULES 1978 WILL APPLY.

Good Living Document

(Rules and Regulations of **ABISHEK RESIDENTS' WELFARE ASSOCIATION)**

The Owners shall also abide by rules and regulations prescribed in the Good Living document. Any violations of the Good Living Document will be subject to penalties as decided by the MC. The MC reserves the right to review and revise the Good Living Document based on emergency and such revisions / amendments shall be ratified in the next AGM / EGM.

- 1) Every Owner who lets his/her/their apartment for occupation by others on lease, tenancy, mortgagee, or otherwise, shall include in the relevant Agreement, binding the occupant to pay, within due date, the monthly maintenance assessments directly to the Association, failing which the penalties may be imposed. A copy of the said Agreement, along with an undertaking by the occupant to abide strictly by the By-laws of the Association, and to make payment in full, and in time, all maintenance assessment as raised, shall be submitted to the Association before occupation of the Apartment. This, however, shall not absolve the Owner from his/her/their responsibility to ensure that all assessments on his/her/their Apartment are paid in time and in the event of any default by his/her/their occupant, shall himself/herself/themselves make all payment as raised by the MC.
- 2) Every Owner / Resident shall provide a copy of their ID proof (Aadhar / Voter ID / Passport) along with details of family members to ARWA at the time of occupation of the flat to facilitate updation of residents records.
- 3) Every Owner shall perform promptly all maintenance and repair work within his/her/their Apartment, which if omitted would affect the building in entirety, or in a part belonging to other owners being expressly responsible for the damages and liabilities that his/her/their failure to do so may endanger. In doing so he/she/ they shall not make any alteration, or modification which may affect the facade or the main structure of the building or the common walls or floors between two units.
- 4) Every Owner shall bear the cost of all repairs to the internal installations of his/her/their Apartments.
- 5) Every Owner/Resident shall fully, and without delay, reimburse the Association for any expenditure in repairing or replacing any damages to the Common Areas and Facilities caused through his/her/their fault.
- 6) Every Owner/Resident shall grant the right of entry to the **MC members**, or any person authorized by them, in case of any emergency originating in or threatening his/her/their Apartment whether the Owner is present or not.
- 7) Every Owner/Resident shall permit the MC members or any person authorized by them to enter the Apartment for the purpose of performing installations, alterations, or repairs to the mechanical or electrical services, provided that the requests for entry are made in advance, and that such entry is at a time convenient to the Owner. In case of an emergency such entry shall be immediate and without notice.
- 8) Every Owner/Resident shall ensure that the Apartment is not used for any purpose other than residential. The Apartments shall also not be used as serviced apartments.
- 9) Every Owner / Resident shall draw metro water only from the outlets designed by the builder and shall be used for cooking and drinking purpose only.
- 10) Every Owner / Resident shall ensure that while move in / move out, heavy vehicles /

truck shall be parked near maintenance office room. Loading / unloading of articles is allowed between 6 AM to 8 PM.

- 11) Every Owner/Resident shall ensure that his/her/their children play only at places allotted if any and during the hours prescribed by the MC. Hard games like football, basketball, cricket, etc. are not allowed in the Complex since no infrastructures for such games were provided by the Builder.
- 12) Every Owner/Resident shall ensure that the building and the Common Areas should not be made dirty and that garbage or trash is segregated and disposed all in accordance with the rules and regulations prescribed by the Association from time to time.
- 13) Every Owner/Resident shall ensure that the rights and privileges of other owners are respected and that no inconvenience is caused to them in any manner.
- 14) Every Owner/Resident shall ensure that the staff employed by him/her/them bear a good character and shall be responsible for their behavior and actions while in his/her/their service. Owners/Resident shall be responsible to ensure that their staff follow all rules laid by the MC, without exception.
- 15) Every Owner/Resident shall use the lifts in such a manner as not to damage them in any way whatsoever and follow the rules and regulations prescribed by Association from time to time.
- 16) Every Owner/Resident shall exercise due care in ensuring that the noise/audio levels whilst using musical instruments, television sets, amplifiers etc. or whilst undertaking carpentry, civil work etc., shall not cause any undue disturbance to neighbors and/or residents of other apartments and shall follow the rules and regulations prescribed by Association from time to time.
- 17) Residents keeping domestic animals or other pets shall abide by the rules and regulations prescribed by the Association from time to time. Pet owners shall not cause any inconvenience to other residents especially while moving out pets for natural call / exercise. "Guidelines on pet and street dogs" issued by The Animal Welfare Board of India from time to time shall be adhered.
- 18) Every Owner shall furnish relevant particulars of any person/persons other than the Owners themselves in occupation of his/her/their Apartment as may be required by the MC. A letter of authorization for such occupation shall be given to the MC before the occupation.
- 19) No Owner shall sell, or otherwise transfer his/her/their Apartment to anyone without notice to the Association and/or without paying in full all amounts due to the Association. Any default in this regard will result in the transferee being denied any or all of the services rendered by the Association including the supply of water unless the transferee undertakes to pay all the dues and does so before occupation of the Apartment.
- 20) No Owner shall make any structural or other modifications which may alter the facade of the building in any way, whatsoever, save and except window grills installed from inside of the Apartment, which may be provided as a measure of safety, but only as approved by the MC, and under its written orders.
- 21) No Owner/Resident shall make any structural modification whatsoever within the Apartment which shall compromise the structural safety of the building such as demolition or modification to load bearing columns/walls etc. or repositioning of toilets/bathrooms from the original/approved plans etc.. Any non- structural modification or alteration or repair (other than normal wear and tear related) within the Apartment or on installations located therein shall need prior written approval of the MC. Such requests by the Owner shall be in writing to the President/Secretary of the MC. The MC shall have the obligation to communicate its decision within 15 days of receipt of the request. The MC may even demand a written report/opinion of a Structural Engineering

- firm, chosen from reputed firms, to be arranged by such Owner at his/her cost. All decisions taken by MC in this regard shall be final and binding.
- 22) No Owner/Resident shall place or cause to be placed in the lobbies, vestibules, stairways, elevators and other Common areas any furniture, potted plants, packages, chappals, shoes or objects of any kind, except while in normal transit through them.
 - 23) Residents should park their cars in the allotted parking slots as per builder's drawing plan. Visitors should park their cars in allotted slots in the exit gate ramp. When visitors parking area is not available, the visitors should park the cars outside the premises and not to park anywhere inside the complex. Visitors parking is available free of charge between 6 am to 10 pm. Appropriate parking charges will be collected for such parking beyond 10 PM. Resident whose visitor stays overnight and parks his/her car in the visitors' parking slot, should inform the security and enter in the register the name of the visitor, resident's name and block and flat number. The charges for overnight car parking fixed by the Association to be paid by the resident/visitor at the time of removing the vehicle. It is a specific pre- condition that all vehicles parked within ARWA Complex are at the owner's risk.
 - 24) Residents should park their two wheelers (Bike, scooter, bi-cycles etc.) in their respective car parking area only. In other words, such two wheelers are not allowed to be parked in the ARWA common area and entrance area nor in other residents' car parking area without their permission.
 - 25) No Owner/Resident shall place any objects in the Common Areas, especially in the lobbies, window sills, lifts, stairways, emergency exits etc. and shall follow all rules and regulations prescribed for this purpose, by the Association from time to time.
 - 26) No Owner/Resident shall put up any hoarding, advertisement, notice, or poster of any kind, in or on ARWA Complex, except as authorized by the Association.
 - 27) No Owner/Resident shall install wiring for electrical, telephone, or fax machines, television antennae, air- conditioning units, or machines on the exterior of the building, which protrudes through, or above the walls or roof, except as authorized by the MC.
 - 28) No Owner/Resident, or any person connected with him/her/them, shall cause any damage, whatsoever, to any asset of the Association. In the event of so doing, the loss on account of damage will be borne by the Owner/Resident. The assessment of loss by the MC shall be final and binding.
 - 29) Residents shall adhere as to not to store explosives or dangerous or any objectionable materials in the flats.
 - 30) Owner / Resident should ensure that the passage way should be kept free of obstruction to facilitate free movement of residents. The residents are strictly prohibited to dispose of garbage or any other waste material through windows of flats including bathrooms that creates nuisance to other residents/cars parked in the areas beneath at respective parking areas or to the common area and people moving thereon.
 - 31) No Owner/Resident shall use any part of the premises including his/her/their Apartment for any commercial activities whatsoever. Usage of apartment premises for the purpose of service apartment / company guest houses (where an owner leases out the apartment to a company which provides the apartment for temporary stay without a lease/rental agreement OR any usage promoting transitional stay) is prohibited by the Association. Upon violations of above conditions, MC reserves the right to restrict usage of common facilities.
 - 32) Owner/Resident should ensure that all safety norms stipulated and required to be followed by the residents and their guests are followed. The Association has no liability for any unfortunate mishaps inside the premises. The residents should ensure that their

- guests also follow the safety and other rules
- 33) No Owner/Resident shall object to any work being undertaken by the MC which is in the common interest of the Owners, even if such work may cause some inconvenience to him/her/them.
 - 34) No Owner/Resident shall, under any circumstances, threaten, abuse, reprimand, assault or in any way take up with the staff employed by the Association, but may report any misbehavior, or neglect of duty by them to the MC.
 - 35) No owner / Resident shall engage ARWA staffs for personal use.
 - 36) All Owner/Resident of ARWA Complex shall ensure that their vehicles are driven within prescribed speed limits keeping utmost safety of Residents in mind and shall also follow all rules and regulations prescribed for this purpose, by the Association from time to time.
 - 37) No Owner/family member(s) or the tenant or any other person(s) shall form any parallel society/association.
 - 38) Any Owner/Resident violating any rules and regulations/By_ Laws of the Association may invite disciplinary/legal action against him/her by the Association so as to make them comply with the said rules and regulations.

-----End of the Document-----